

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

19. KYRA MCAFFEE V. MAXWELL MCAFFEE (JOINED PARTY: BRIAN AND CORRINE BUNCH)**PFL20210499**

Order to Show Cause

Joined Parties filed an Order to Show Cause and Affidavit for Contempt on January 12, 2026. Petitioner and Respondent were properly served. Parties appeared on March 19, 2026, for the initial arraignment. The court appointed the office of the Public Defender to Petitioner, subject to their review and determination of eligibility.

Parties appeared on June 11, 2026, for further arraignment. The Office of the Public Defender declared an overwork conflict. As such, they were thanked and relieved. The Alternate Public Defenders Office was subsequently appointed. Counsel then requested the matter be continued. The court granted the request to continue.

Parties are ordered to appear for the arraignment.

Request for Order

Joined Parties filed a Request for Order (RFO) on June 29, 2026, seeking modification of visitation orders. Despite attending Child Custody Recommending Counseling (CCRC) within the prior six months, the parties were referred to CCRC with an appointment on August 14, 2026, and a review hearing on September 24, 2026. All parties were mail served on June 30, 2026.

Petitioner filed a Responsive Declaration on August 14, 2026. There is no Proof of Service for this document, therefore, the court cannot consider it.

The parties attended CCRC and were unable to reach any agreements. A report with recommendations was prepared on September 9, 2026, and mailed to the parties on September 10th.

Respondent has not filed a Responsive Declaration.

The court has read and considered the filings as outlined above. The court finds the recommendations as set forth in the September 9th CCRC report to be in the best interest of the minor. The court adopts the recommendations with the following clarification. Joined Parties shall have one time per month visitation with Weston and Jackson on the 4th weekend of the month from Saturday at 12:00 PM to Sunday at 6:00 PM.

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All other orders not in conflict with this order remain in full force and effect. Joined Parties are directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #19: PARTIES ARE ORDERED TO APPEAR FOR THE ARRAIGNMENT.

THE COURT FINDS THE RECOMMENDATIONS AS SET FORTH IN THE SEPTEMBER 9TH CCRC REPORT TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE RECOMMENDATIONS WITH THE FOLLOWING CLARIFICATION. JOINED PARTIES SHALL HAVE ONE TIME PER MONTH VISITATION WITH WESTON AND JACKSON ON THE 4TH WEEKEND OF THE MONTH FROM SATURDAY AT 12:00 PM TO SUNDAY AT 6:00 PM.

ALL OTHER ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT. JOINED PARTIES ARE DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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20. MICHELLE PETERS V. JOSEPH PETERS

24FL0418

Respondent filed a Request for Order (RFO) on June 30, 2026, requesting modification of the current parenting plan orders, as well as property control orders and *Watts* Credits. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on August 14, 2026, and a review hearing on September 24th. Proof of Service shows Petitioner was served with most, but not all the required documents by mail on June 30, 2026.

Both parties appeared at CCRC and reached a full agreement. A report containing the parties' agreement was prepared on August 18, 2026, and mailed to the parties on August 19th.

Petitioner filed and served a Responsive Declaration on September 1, 2026. Petitioner does not raise the defect in service; therefore, the court deems it to be waived. Petitioner requests she be granted exclusive use and control of the former marital residence. Petitioner also objects to a court order that she maintain insurance on the property, duty to the high costs associated with being in a high fire risk area. Petitioner also objects to *Watts* credits. Last, Petitioner requests the court adopt the agreements as set forth in the August 18th CCRC report.

Respondent filed a Reply Declaration on September 8, 2026. It was served the same day. Respondent reiterates his original requests regarding the property.

The court has read and considered the filings as outlined above. The court finds the agreements of the parties as set forth in the August 18th CCRC report to be in the best interests of the minors. The court adopts the agreements as its orders.

The court grants Petitioner's request for exclusive use and control of the property located at 6008 Pony Express Trail, Pollock Pine, California 95726 pending further order of the court, and reserving on the characterization of the property until the time of trial. Petitioner shall be responsible for the maintenance and upkeep of the property, along with all expenses for the property, subject to any reimbursement claims. Further, the court is directing Petitioner to secure insurance for the manufactured home. As to Respondent's request for *Watts* credits, the court finds this request to be premature, and reserves on the issue until the time of trial.

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however,

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this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #19: THE COURT FINDS THE AGREEMENTS OF THE PARTIES AS SET FORTH IN THE AUGUST 18TH CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS. THE COURT ADOPTS THE AGREEMENTS AS ITS ORDERS. THE COURT GRANTS PETITIONER'S REQUEST FOR EXCLUSIVE USE AND CONTROL OF THE PROPERTY LOCATED AT 6008 PONY EXPRESS TRAIL, POLLOCK PINE, CALIFORNIA 95726 PENDING FURTHER ORDER OF THE COURT, AND RESERVING ON THE CHARACTERIZATION OF THE PROPERTY UNTIL THE TIME OF TRIAL. PETITIONER SHALL BE RESPONSIBLE FOR THE MAINTENANCE AND UPKEEP OF THE PROPERTY, ALONG WITH ALL EXPENSES FOR THE PROPERTY, SUBJECT TO ANY REIMBURSEMENT CLAIMS. FURTHER, THE COURT IS DIRECTING PETITIONER TO SECURE INSURANCE FOR THE MANUFACTURED HOME. AS TO RESPONDENT'S REQUEST FOR WATTS CREDITS, THE COURT FINDS THIS REQUEST TO BE PREMATURE, AND RESERVES ON THE ISSUE UNTIL THE TIME OF TRIAL.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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21. JAMES PETERSON V. MOLLY PETERSON

PFL20110929

Petitioner filed a Request for Order (RFO) on June 25, 2026, seeking modification of the child support orders. Petitioner concurrently filed an Income and Expense Declaration. There is no Proof of Service showing Respondent was properly served with these documents.

Petitioner filed an Amended Income and Expense Declaration as well as a Supplemental Declaration on June 26, 2026. There is no Proof of Service for these documents, and therefore, these documents cannot be considered by the court.

Respondent Filed a Responsive Declaration and Income and Expense Declaration on September 9, 2026. These documents were served on September 4, 2026.

Petitioner filed a Supplemental Declaration on September 11, 2026. Proof of Service shows this was served on September 12, 2026.

Respondent filed a Reply Declaration and an Income and Expense Declaration on September 17, 2026. Both were served the same day.

Parties are ordered to appear for the hearing.

TENTATIVE RULING #21: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.